Collaborative Essay Practice

Group Member Names:

Discussion Facilitator: _____

Scribe: _____

Rubric & Checklist Expert: _____

Accountability & Timekeeping: _____

Prompt: To what extent is the Constitution serving Americans' needs in the 21st century?

Step 1: Analyze the prompt. First, rewrite it in your own words:

How well does a document written in 1787 still protect Americans' rights and solve today's problems, like phones, privacy and AI?

To what extent = how much: a spectrum, not yes or no; **Constitution** = the 1787 document plus its 27 amendments and how courts read it; **Serving needs** = protecting rights and letting government handle new problems; **21st century** = today: smartphones, social media, AI

Step 2: When you are answering, think of this as a spectrum. Identify the three options you can argue:

A "to what extent" prompt, so the options are places on a spectrum.

Option 1: To a great extent, it adapts to everything

Option 2: To a large extent, with gaps, flexible, but privacy depends on courts (← we argue this)

Option 3: Very little, outdated and too hard to change

Step 3: Gather evidence before deciding which side to argue:

	Evidence	Which option from step 2 does this support and why?
Option 1	**Courts apply old rights to new tech** Riley v. California (2014): warrant to search a phone. Carpenter v. U.S. (2018): warrant for phone location data.	Option 1: the 4th Amendment covers phones without an amendment.
Option 2	**Laws fit to new tech** Salazar v. Paramount Global (No. 25-459): the Video Privacy Protection Act and tracking pixels. Congress can rewrite a law if it disagrees.	Options 1 and 2: courts and Congress keep it current.
Option 3	**Federalism and AI** Congress can regulate AI with the Commerce Clause (Article I). States pass their own AI laws as reserved powers (10th Amendment).	Option 1: the system splits up new problems.
Option 4	**Federal vs California (March 2026)** The Department of Transportation sued California's Air Resources Board, saying the Supremacy Clause overrides its zero emission rules.	Option 2: the founders' balance still settles fights.
Option 5	**Hard to change** Only 27 amendments; India 100+ since 1950, Mexico 700+ since 1917. Privacy isn't in the text. Presidents gain power through executive orders.	Option 3, or the gap in Option 2.

Step 4: Draft your response, using the rubric and checklist to guide how you construct your argument

Context: The background information that shows your reader why this topic is significant by answering key questions like who, what, where, when, and why. Aim to write at least 3 connected context sentences before reaching your thesis statement.
The Constitution was written in 1787 for about 4 million people and a world without electricity. Today Americans live with smartphones, social media and artificial intelligence. That raises the question of whether a 230 year old document can still protect their rights.

Thesis: Clearly answer the prompt by claiming (arguing) something. Provide a clear outline of what you will discuss in your body paragraph. [Claim] because [Supporting Argument 1] and Y [Supporting Argument 2].
The Constitution serves Americans in the 21st century to a large extent, because courts can apply its broad principles to new technology and federalism with checks and balances lets the country handle problems like AI. However, its slow amendment process leaves modern rights like digital privacy depending on court decisions instead of the text.

Evidence 1: Remember TEA: Begin with a TOPIC SENTENCE, then introduce your EVIDENCE (facts and examples that support your argument) in the following sentences. Then through ANALYSIS, explain why the evidence matters and how it proves your thesis.
Topic: One major reason it still works is that the Supreme Court interprets the Constitution instead of waiting for amendments.
Evidence: In Riley v. California (2014), the Court ruled police need a warrant to search a phone, and in Carpenter v. U.S. (2018) it required one for phone location data. Salazar v. Paramount Global shows courts fitting the Video Privacy Protection Act to tracking pixels, and Congress can rewrite the law if it disagrees.
Analysis: This shows the founders' broad wording was an advantage. Judicial review and checks and balances let old rights cover new technology without passing an amendment.

Evidence 2: Remember TEA: Begin with a TOPIC SENTENCE, then introduce your EVIDENCE (facts and examples that support your argument) in the following sentences. Then through ANALYSIS, explain why the evidence matters and how it proves your thesis.
Topic: Another reason is federalism, which splits power between the nation and the states.
Evidence: Congress can regulate AI through the Commerce Clause, while states pass their own AI laws as reserved powers under the 10th Amendment. In March 2026 the Department of Transportation sued California's Air Resources Board, claiming the Supremacy Clause overrides its zero emission rules, while California says it can set stricter standards.
Analysis: This shows the balance between the Supremacy Clause and the 10th Amendment still works. States can experiment while national law keeps the country unified.

Alternative Perspective: Remember TEA: Begin with a TOPIC SENTENCE, then introduce your EVIDENCE (in this case, the evidence that someone arguing the other perspective would say) in the following sentences. Then through ANALYSIS, explain why the evidence matters, but why ultimately your argument is stronger than the other perspective.
Topic: Critics argue the Constitution can't keep up.
Evidence: Only 27 amendments have passed, while India has made more than 100 since 1950 and Mexico more than 700 since 1917. Privacy isn't written in the text, and presidents keep gaining power through executive orders and emergency powers.
Analysis: That is valid to some extent, but the limits still hold: executive orders can't create laws or change spending, Congress keeps the power of the purse, and U.S. v. Nixon proved no President is above the law. Being hard to change keeps the Constitution stable.

Conclusion (not on the class sheet, but the essay needs one): The Constitution serves the 21st century to a large extent because its design is flexible, but protecting rights like privacy still depends on courts and Congress keeping up with technology.